

except for an abuse thereof.” (*National Electric Supply Co. v. Mt. Diablo Unified School Dist.* (1960) 187 Cal.App.2d 418.)

Ms.Beeker fails to persuade the Court that her proposal for bifurcation, severance, and her proposed sequence would serve judicial economy, efficiency, or convenience.

Fundamentally, it appears to the Court, from the allegations of the FACC, that Ms.Beeker’s equitable claims regarding the real property are contingent on a finding that Plaintiffs enjoy legal title in and to the subject real property. (See, *e.g.*, FACC at ¶ 89 [“To the extent the Court finds that Cross-Defendants hold any interest in the Property or the funds associated with it, Cross-Defendants have received and controlled funds belonging to or for the benefit of Cross-Complainant . . .”].) The Court, therefore, finds no good cause for trying these equitable claims *before* the parties’ competing claims regarding legal title in and to the real property.

Moreover, Plaintiffs present evidence tending to show that a significant portion of the monies that Ms.Beeker alleges she contributed to the real property, and which found her equitable claims relating thereto, were wrongfully obtained by the Beekers from the sale of Plaintiffs’ fermentation tanks. (See, *e.g.*, Declaration of Jill K. Cohoe, Exh. 1 at p. 65, and Exh. 2 at p. 184; see also FACC at ¶¶ 29, 89(c), 94, 98(d), and 108.) Ms.Beeker’s requested equitable accounting (seventh cause of action) and other equitable claims therefore appear to directly invoke the issue of the Beekers’ right and title in and to the funds alleged to have been invested into the real property.

Based on the foregoing, the Court does not find good cause for trying Ms.Beeker’s equitable claims before either the legal claims relating to the real property or the legal claims relating to the fermentation tanks.

The motion is, therefore, DENIED. However, because the order of the presentation of evidence to a jury, and the trial of equitable matters to the Court remains to be set, the instant ruling is made without prejudice to Ms.Beeker’s right to renew, at the Trial Management Conference, her request to have evidence presented and issues tried in a particular sequence.

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Robert Breed v. Adventist Health St. Helena et al

26CV000093

[1] DEFENDANT’S MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFF’S RESPONSES TO SPECIAL INTERROGATORIES, SET ONE, AND REQUEST FOR SANCTIONS AGAINST PLAINTIFF AND/OR HIS COUNSEL

TENTATIVE RULING: The motion is GRANTED IN PART. Plaintiff is ordered to, within 10 Court days of Notice of Entry of the instant order: (1) produce further responses to the Subject Discovery (defined below); and (2) remit monetary sanctions in the amount of \$1,915 to Defendant, care of Defendant’s counsel of record. Defendant is directed to file and serve a Notice of Entry of the instant order.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Defendant St. Helena Hospital moves for an order compelling Plaintiff Robert Breed to provide further responses to Defendant's Interrogatories, Set One, Nos. 12, 13, and 16 (Subject Discovery). Defendant additionally asks the Court to impose monetary sanctions, in the amount of \$3,155, against Plaintiff and/or his counsel.

A. LEGAL ANALYSIS

If a party propounding interrogatories is not satisfied with the response served by a responding party, the propounding party may move the court to compel further responses. (Code Civ. Proc. § 2030.300.) The propounding party must demonstrate that the responses were incomplete, inadequate or evasive, or that the responding party asserted objections that are either without merit or too general." (*Sinaiko Healthcare Consulting Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 403 (*Sinaiko*)). While the party propounding interrogatories has the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, the burden of justifying any objection and/or failure to respond remains at all times with the party resisting an interrogatory. (*Coy v. Super. Ct.* (1962) 58 Cal.2d 210, 220–221.)

Interrogatory No. 12: This interrogatory directs Plaintiff to "IDENTIFY all of YOUR social media handles, including but not limited to Facebook, Instagram, Twitter, LinkedIn and the like." (See Declaration of Nicole Baarts at ¶ 2, and Exh. A (Baarts Decl.)). Plaintiff responded to the interrogatory by asserting a series of objections, and by stating, "Responding Party maintains accounts on LinkedIn, Snapchat, and Facebook. Responding Party additionally has an Instagram account." (*Id.* at ¶ 3, and Exh. B.)

The Court finds that the term "social media handle" is a phrase in general use and commonly understood to mean a person's public-facing username on social media platforms. (See Evid. Code, § 452, subds. (g) and (h).) The Court further finds that Plaintiff's response is incomplete in that it does not provide the requested information.

Plaintiff filed nothing in opposition to the instant motion and, therefore, fails to justify any of his objections and his failure to respond.

Based on the foregoing, the Motion is GRANTED as to Interrogatory No. 12.

Interrogatory No. 13: This interrogatory directs Plaintiff to "STATE every date on which YOU provided medical documentation to DEFENDANT requesting an accommodation." (See

Baarts Decl. at ¶ 2, and Exh. A.) Plaintiff responded to the interrogatory by asserting a series of objections; Plaintiff provided no substantive response. (See *id.* at ¶ 3, and Exh. B.)

The Court finds that Plaintiff's response is incomplete in that it does not provide the requested information.

Plaintiff filed nothing in opposition to the instant motion and, therefore, fails to justify any of his objections and his failure to respond.

Based on the foregoing, the Motion is GRANTED as to Interrogatory No. 13.

Interrogatory No. 16: This interrogatory directs Plaintiff to "STATE the date YOU hired an attorney to pursue claims against DEFENDANT." (See Baarts Decl. at ¶ 2, and Exh. A.) Plaintiff responded to the interrogatory by asserting a series of objections; Plaintiff provided no substantive response. (See *id.* at ¶ 3, and Exh. B.)

Plaintiff filed nothing in opposition to the instant motion and, therefore, fails to justify any of his objections and his failure to respond.

Based on the foregoing, the Motion is GRANTED as to Interrogatory No. 16.

Sanctions

"The court shall impose a monetary sanction...against any party, person, or attorney who unsuccessfully...opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2030.300, subd. (d).) Moreover, "[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed...." (Rules of Court, rule 3.1348, subd. (a).)

The Court finds no substantial justification for Plaintiff's failure to adequately respond to the Subject Discovery and finds no other circumstances that would make the imposition of the sanction unjust.

The Court finds that the amount of time spent by counsel preparing the instant motion is reasonable, and that the rates charged are consistent with those typically charged in the community for similar work. (See Baart Decl. at ¶ 11.) However, the Court does not award sanctions for anticipated future work. Based on the foregoing, the request for an award of monetary sanctions is GRANTED IN PART in the amount of ([3 hr. x \$450/hr.] + [1 hr. x \$565/hr.] =) \$1,915.

[2] MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE, AND REQUEST FOR SANCTIONS AGAINST PLAINTIFF AND/OR HIS COUNSEL IN THE AMOUNT OF \$4,900.50

TENTATIVE RULING: The motion is GRANTED IN PART. Plaintiff is ordered to produce, no later than 10 Court days from Notice of Entry of the instant order, a further response to the Subject Discovery. Plaintiff retains the right to assert, therein, any objection based on the attorney-client privilege and/or the attorney work product doctrine. Plaintiff retains the right to assert, therein, an objection to Request No. 23 based on the breadth of that Request and/or its relevance to the instant litigation. All other objections to the Subject Discovery are hereby OVERRULED. Plaintiff's further response shall comply with those portions of the Civil Discovery Act governing such responses, set forth and discussed below. Plaintiff is further ordered to remit to Defendant, care of its attorneys of record, no later than 10 Court days from Notice of Entry of the instant order, monetary sanctions in the amount of \$2,703. Defendant is to serve and file Notice of Entry of the instant order.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Defendant St. Helena Hospital "requests that the Court order Plaintiff to serve complete, verified responses without objection to Defendant's [Requests for the Production of Documents, Set One]." (Notice of Motion at 2:8-9.) Defendant further requests an award of monetary sanctions, in the amount of \$4,900.50, against Plaintiff and/or his counsel. (See *id.* at 2:10-12.)

"[I]f a propounding party is not satisfied with the response served by a responding party, the propounding party may move the court to compel further responses. [Citations.] The propounding party must demonstrate that the responses were incomplete, inadequate or evasive, or that the responding party asserted objections that are either without merit or too general." (*Sinaiko Healthcare Consulting Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 403 (*Sinaiko*); see also Code Civ. Proc., § 2031.310.²) In addition, a party moving to compel further responses to an inspection demand must establish "good cause justifying the discovery sought by the inspection demand." (§ 2031.310, subd. (b)(1).) "[A]bsent a claim of privilege or attorney work product, the party who seeks to compel production has met his burden of showing good cause simply by a fact-specific showing of relevance." (*Kirkland v. Super. Ct.* (2002) 95 Cal.App.4th 92, 98 (*Kirkland*).) "In the context of discovery, evidence is 'relevant' if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement." (*Glenfed Development Corp. v. Super. Ct.* (1997) 53 Cal.App.4th 1113, 1117 (*Glenfed*).) Once good cause is shown, the burden shifts to the party opposing the motion to justify its objection(s). (See *Kirkland*, *supra* at p. 98.)

² All subsequent statutory references herein are to the Code of Civil Procedure unless otherwise noted.

Here, Defendant seeks additional responses because Plaintiff served two separate responses to the Subject Discovery. (See Declaration of Nicole Baarts at ¶¶ 3-4, and Exhs. B and C (Baarts Decl.)) Plaintiff asserted objections through each of the responses. (See *id.* at Exhs. B and C.) Through the first of these responses, Plaintiff agreed to produce documents in response to each request. (See *id.* at Exh. B.) Through the second of these responses, however, Plaintiff communicated an inability to respond to the requests “as phrased.” (See *id.* at Exh. C.)

Defendant produces evidence that counsel attempted to meet and confer regarding the confusion engendered by these multiple, inconsistent responses, and that, while Plaintiff’s counsel responded by communicating an intention to clarify the responses, no such clarification has been made, and no documents have been produced. (See Baarts Decl. at ¶¶ 5, 7-11, and Exh. D.)

The obligations of a party upon whom an inspection demand has been served are clearly set forth in the Civil Discovery Act. “The party to whom a demand for inspection, copying, testing, or sampling has been directed shall respond separately to each item or category of item by any of the following: (1) A statement that the party will comply with the particular demand....(2) A representation that the party lacks the ability to comply with the demand....(3) An objection to the particular demand for inspection, copying, testing, or sampling.” (§ 2031.210.) The requirements for each of these three acceptable responses are set out in sections 2031.220, 2031.230, and 2031.240. The response may be “[a] statement that the party to whom a demand for inspection, copying, testing, or sampling has been directed will comply with the particular demand shall state that the production, inspection, copying, testing, or sampling, and related activity demanded, will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production.” (§ 2031.220.) If the response indicates an inability to comply, that response “shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.” (§ 2031.230.) Alternatively, “[i]f only part of an item or category of item in a demand for inspection, copying, testing, or sampling is objectionable, the response shall contain a statement of compliance, or a representation of inability to comply with respect to the remainder of that item or category.” (§ 2031.240, subd. (a).) Finally, “[i]f the responding party objects to the demand for inspection, copying, testing, or sampling of an item or category of item, the response shall...[i]dentify with particularity any document, tangible thing, land, or electronically stored information falling within any category of item in the demand to which an objection is being made...[and]...[s]et forth clearly the extent of, and the specific ground for, the objection.” (§ 2031.240, subd. (b).)

The present circumstances are unique in the Court’s experience. As noted above, Plaintiff served an apparently code-compliant response indicating that he *would* comply with each of the requests in the Subject Discovery. (See Baarts Decl. at Exh. B.) That indication of compliance, however, is directly contradicted by Plaintiff’s *second* response indicating an *inability* to comply.

(See *id.* at Exh. C.) That statement of inability to comply, however, does not conform to the requirements of Section 2031.230. Rather, it *suggests* an inability to comply based on one or more of Plaintiff's objections to the form of the requests. (See *id.* ["Responding Party cannot respond to this request as phrased"].) That Plaintiff responded to each of the Subject Discovery requests with the same statement strongly suggests that these second responses were served for an improper purpose and, therefore, constitute a misuse of the discovery process. (See § 2023.010, subds. (d), (e), and (f).)

Defendant, for its part, fails to address whether good cause exists supporting each request. (See § 2030.310, subd. (b)(1).) However, a finding of relevance may be supported by the claims or defenses asserted through the pleadings. (*Kirkland, supra*, 95 Cal.App.4th at 97-98.)

Here, the Court finds, from a review of the operative Complaint, good cause for all of the Requests *except* Request No. 23. The Court finds that Request No. 23 is overly broad.

Again, once good cause is shown, the burden shifts to the party opposing the motion to justify its objection(s). (See *Kirkland, supra*, 95 Cal.App.4th at 98.) To the extent that Plaintiff's statement of inability to comply, asserted through the second response to the Subject Discovery, is based on an objection to the form of each of the requests, it is Plaintiff's burden to justify the objection. Plaintiff was given the opportunity to do so through meet and confer. Plaintiff was given the opportunity to do so through the instant motion. Plaintiff has failed, however, to carry this burden either through meet and confer or by filing anything in opposition to the instant motion.

Based on the foregoing, the Court rules as follows. Plaintiff is ordered to produce, no later than 10 Court days from Notice of Entry of the instant order, a further response to the Subject Discovery. Plaintiff retains the right to assert, therein, any objection based on the attorney-client privilege and/or the attorney work product doctrine. Plaintiff retains the right to assert, therein, an objection to Request No. 23 based on the breadth of that Request and/or its relevance to the instant litigation. All other objections to the Subject Discovery are hereby **OVERRULED**. Plaintiff's further response shall comply with those portions of the Civil Discovery Act governing such responses, set forth and discussed above.

With exceptions not relevant here, "the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2031.310, subd. (h).) Moreover, "[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed...." (Rules of Court, rule 3.1348, subd. (a).)

The Court finds no substantial justification for Plaintiff's conduct in responding to the Subject Discovery and finds no other circumstances that would make the imposition of the sanction unjust.

The Court finds that the amount of time spent by counsel preparing the instant motion is reasonable, and that the rates charged are consistent with those typically charged in the community for similar work. (See Baart Decl. at ¶ 12.) However, the Court does not award sanctions for anticipated future work. Based on the foregoing, the request for an award of monetary sanctions is GRANTED IN PART in the amount of ([4.5 hr. x \$450/hr.] + [1.2 hrs. x \$565/hr.] =) \$2,703.

- [3] DEFENDANT’S MOTION TO COMPEL COMPLIANCE WITH DEPOSITION SUBPOENAS
- [4] MOTION TO QUASH, OR IN THE ALTERNATIVE FOR A PROTECTIVE ORDER AS TO THE SUBPOENA FOR BUSINESS RECORDS FROM SUTTER DAVIS HOSPITAL
- [5] MOTION TO QUASH, OR IN THE ALTERNATIVE FOR A PROTECTIVE ORDER AS TO THE SUBPOENA FOR BUSINESS RECORDS FROM KAISER PERMANENTE OAKLAND MEDICAL CENTER
- [6] MOTION TO QUASH, OR IN THE ALTERNATIVE FOR A PROTECTIVE ORDER AS TO THE SUBPOENA FOR BUSINESS RECORDS FROM CENTER FOR SPECIALIZED SURGERY
- [7] MOTION TO QUASH, OR IN THE ALTERNATIVE FOR A PROTECTIVE ORDER AS TO THE SUBPOENA FOR BUSINESS RECORDS FROM EMERALD HEALTH SERVICES, INC.

TENTATIVE RULING: These matters are CONTINUED to July 9, 2026, at 8:30 a.m. in Dept. B. Defendant St. Helena Hospital is granted leave to serve and file, no later than June 25, 2026, a Separate Statement in support of its Motion to Compel. The Separate Statement should, at a minimum, set forth Defendant’s arguments regarding good cause for production of the documents sought by the subpoenas. Plaintiff Robert Breed is granted leave to serve and file, no later than June 25, 2026, one or more Separate Statements in support of his Motions to Quash.³ The(se) Separate Statement(s) should, at a minimum, set forth Plaintiff’s arguments that his right to privacy in and to the subject documents outweighs Defendant’s right and interest to discovery thereof. Each party is granted leave to serve and file Responsive Separate Statements, if necessary, on or before July 2, 2026.

On May 18, 2026, St. Helena Hospital filed its motion, pursuant to Code of Civil Procedure §1985.3 and 1985.6, for an order compelling third parties Emerald Health Services (Emerald), Sutter Davis Hospital (Sutter), and the Center for Specialized Surgery (Specialized,

³ It appears that the four subpoenas addressed, respectively, by Plaintiff’s four Motions to Quash, involve identical categories in their requests for production of documents. To the extent that Plaintiff’s argument(s) regarding each such category are identical with regard to the four Motions, Plaintiff need not submit four identical Separate Statements but may, instead, submit a single Separate Statement setting for the relevant arguments.

and collectively Employers) to comply with respective deposition subpoena for production of Plaintiff's employment records served by Defendant on each.

Through his Opposition to that Motion, Plaintiff suggests that Defendant is arguing that Plaintiff waived objections to the subpoenas by failing to timely bring a motion to quash. (See, e.g. Opposition at 2:17-19.) First, the Court does not find this argument in Defendant's moving papers. Defendant, through the moving papers, correctly notes that Plaintiff failed to file such motion – the statutory means for timely asserting his right to privacy. But the Court does not read this as an argument that Plaintiff waived his objections. Second, even assuming, *arguendo*, that such argument were raised, the Court finds that, while a failure to timely file a motion to quash exposes a party to the risk that the third party will respond to the subpoena, it does not, by itself, constitute a waiver of objections to the subpoena. (See *Slagle v. Super. Ct.* (1989) 211 Cal.App.3d 1309, 1312 [“Nothing in the procedure . . . suggests that a court lacks jurisdiction to consider a motion to quash if it is brought after the date set forth in the subpoena for production”].)

On June 1, 2026, Plaintiff Robert Breed filed four motions, each pursuant to Code of Civil Procedure 1987.1, seeking, respectively, to quash, or in the alternative, for a protective order regarding the three deposition subpoenas for business records at issue in Defendant's Motion to Compel, as well as a deposition subpoena served on the Custodian of Records for Kaiser Permanente Oakland Medical Center. The arguments advanced in support of these motions appear, to the Court, to be identical with those advanced in opposition to Defendant's Motion to Compel.

As Defendant notes in its opposition to these Motions to Quash, Plaintiff failed to timely file and serve the motions pursuant to Code of Civil Procedure section 1005, subdivision (b). Nonetheless, Defendant filed substantive oppositions to each, and fails to identify any prejudice suffered by the lack of adequate Notice.

However, neither party filed Separate Statements in support of the motions. “Any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement. The motions that require a separate statement include a motion . . . [t]o compel or to quash the production of documents or tangible things at a deposition . . .” (Cal. Rules of Court, rule 3.1345(a)(5).)

The Court, therefore, continues hearing on these motions and grants the parties leave to serve and file Separate Statements.

Defendant's initial Separate Statement should, at a minimum, contain arguments regarding good cause for the production sought by the subject subpoenas. Pursuant to California's Civil Discovery Act, A civil litigant's right to discovery is broad. “[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action . . . if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Code Civ. Proc., § 2017.010; see *Davies v. Super. Ct.* (1984) 36 Cal.3d 291, 301 [“discovery is not limited to admissible evidence”].) “A trial court must be mindful of the Legislature's preference for

discovery over trial by surprise, must construe the facts before it liberally in favor of discovery, may not use its discretion to extend the limits on discovery beyond those authorized by the Legislature, and should prefer partial to outright denials of discovery.” (*Williams v. Super. Ct.* (2017) 3 Cal.5th 531, 540.) “California’s pretrial discovery procedures are designed to minimize the opportunities for fabrication and forgetfulness, and to eliminate the need for guesswork about the other side’s evidence, with all doubts about discoverability resolved in favor of disclosure.” (*Glenfed Development Corp. v. Super. Ct.* (1997) 53 Cal.App.4th 1113, 1117 (*Glenfed*).)

“Although the scope of civil discovery is broad, it is not limitless.” (*Calcor Space Facility v. Super. Ct.* (1997) 53 Cal.App.4th 216, 223 (*Calcor*) “In the...context of a request to produce documents, a party who seeks to compel production must show ‘good cause’ for the request (§ 2031, subd. (l)) – but where...there is no privilege issue or claim of attorney work product, that burden is met simply by a fact-specific showing of relevance.” (*Glenfed, supra*, 53 Cal.App.4th 1117.) “In the context of discovery, evidence is ‘relevant’ if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement.” (*Glenfed, supra*, 53 Cal.App.4th at 1117.) A finding of relevance may be supported simply by the claims or defenses asserted through the pleadings. ((*Kirkland v. Super. Ct.* (2002) 95 Cal.App.4th 92, 98.) Where such showing cannot be established by reference to the pleadings, the burden on the party seeking discovery is to “produce *evidence* from which the court may determine” that “the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (*Calcor, supra*, at p. 223, emphasis in original.)

Plaintiff’s Separate Statement(s) should address his argument that his constitutional rights to privacy outweigh Defendant’s rights to discovery. “The state Constitution expressly grants Californians a right of privacy. (Cal. Const., art. I, § 1.) Protection of informational privacy is the provision’s central concern. (*Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, 35.) In *Hill*, we established a framework for evaluating potential invasions of privacy. The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. (*Id.* at pp. 35–37.) The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations. (*Id.* at pp. 37–40.)” (*Williams v. Super. Ct.* (2017) 3 Cal.5th 531, 552.) “Courts must . . . place the burden on the party asserting a privacy interest to establish its extent and the seriousness of the prospective invasion, and against that showing must weigh the countervailing interests the opposing party identifies, as *Hill* requires. What suffices to justify an invasion will . . . vary according to the context. Only obvious invasions of interests fundamental to personal autonomy must be supported by a compelling interest. [Citation.]” (*Id.* at p. 557.)

Both parties are *urged* to set forth their respective arguments as concisely as possible. To the extent that a single argument is relevant to multiple subpoenas and/or multiple categories of documents requested, the parties are encouraged to articulate the argument once, and to then cite to the argument in subsequent sections of the Separate Statement, rather than simply copy and repeatedly paste arguments.

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****at 9:30 a.m.****

Igor Sill v. William Deem et al

24CV000698

MOTION FOR SUMMARY ADJUDICATION

TENTATIVE RULING: The motion is GRANTED. Plaintiff is directed to submit a Proposed Order for the Court's signature.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Igor Sill ("Plaintiff") moves, pursuant to Code of Civil Procedure section 437c, subd. (f)(1),⁴ for summary adjudication on the following issue: "Defendant Kimberton Wines LLC ('Kimberton') is liable to Plaintiff for breach of the written contracts between Kimberton and Plaintiff alleged in the First Cause of Action of the First Amended Complaint because there is no triable issue of material fact with regards to Kimberton's liability for breach of contract, in that the undisputed evidence shows Kimberton failed to pay the contract price for wine grapes delivered to and accepted by Kimberton." (Notice of Motion, pp. 1-2.)

"A party may move for summary judgment in an action or proceeding if it is contended . . . that there is no defense to the action or proceeding." (Code Civ. Proc., § 437c, subd. (a)(1).) "A plaintiff . . . has met that party's burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff . . . has met that burden, the burden shifts to the defendant . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Code Civ. Proc., § 437c, subd. (p); see also *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*) ["a plaintiff bears the burden of persuasion that 'each element of' the 'cause of action' in question has been 'proved,' and hence that 'there is no defense' thereto"].)

Under California law, the elements of a breach of contract cause of action are: (1) existence of the contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) damages to plaintiff as a result of the breach. (*CDF Firefighters v. Maldonado* (2008) 158 Cal.App.4th 1226, 1239.)

⁴ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.